

STATE OF NEW YORK

4832--A

Cal. No. 355

2025-2026 Regular Sessions

IN SENATE

February 13, 2025

Introduced by Sen. C. RYAN -- read twice and ordered printed, and when printed to be committed to the Committee on Labor -- recommitted to the Committee on Labor in accordance with Senate Rule 6, sec. 8 -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the workers' compensation law, in relation to requiring the workers' compensation board to submit a supplemental report every year thereafter

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The workers' compensation law is amended by adding a new
2 section 153-a to read as follows:

3 § 153-a. Supplemental report. The board shall on or before the first
4 day of February, two thousand twenty-seven, and every year thereafter,
5 make in writing to the governor, the speaker of the assembly and the
6 temporary president of the senate a supplemental report on the status of
7 the workers' compensation board and methods to modernize such board,
8 which shall be delivered in addition to the annual report required under
9 section one hundred fifty-three of this article. Such supplemental
10 report shall include, but not be limited to, data and information sets
11 and recommendations concerning:

12 1. the status of membership of the workers' compensation board;

13 2. recommendations to modernize the workers' compensation board and
14 the status of any ongoing modernization efforts, if applicable;

15 3. the total number of claimants who have filed a claim before the
16 workers' compensation board;

17 4. the total number of claims in which an award or decision was made,
18 and the total number of claims in which a court order was made;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 5. the average length of time between the time a claimant files a
2 claim to the workers' compensation board and the time an award or deci-
3 sion, or court order, is made in regards to such claim;

4 6. the number of claims in which the time to an award or decision, or
5 court order, was greater than the average time as detailed by subdivi-
6 sion five of this section, and reasons why such claims were greater than
7 the average time;

8 7. the number of claims in which frivolous appeals were made by an
9 employer, and if any award or decision, or court order, related to such
10 claims were made in a time that was greater than the average time as
11 detailed by and cross referenced with subdivisions five and six of this
12 section; and

13 8. all other such data and information sets that are relevant to the
14 requirements of this section or may be useful to the recommendations as
15 required herein, as determined by the chair of the workers' compensation
16 board.

17 § 2. This act shall take effect immediately.